

Please do not write anything except the question number in this space

UPSC

(Specimen Answer Booklet - For Practice Purpose Only)

D-17
F.D (polity)
Ravi

Candidates must not write on this margin

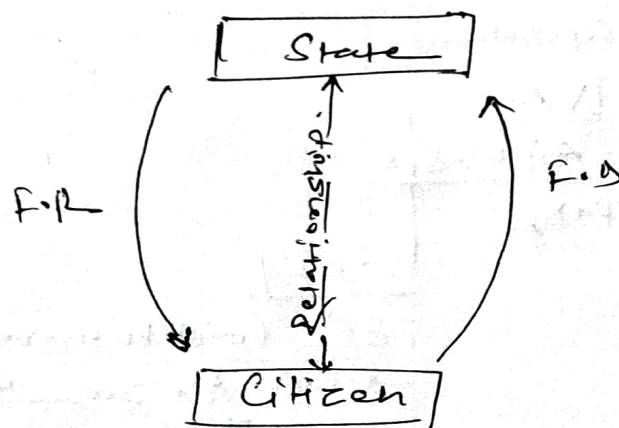
1.

The fundamental Duties were incorporated in the Constitution to balance Citizens' rights with responsibilities. Critically analyze the evolution, significance and legal enforceability of fundamental Duties in India.

(38 M)

Fundamental Duties and Fundamental Rights plays complementary role towards strengthening the relationship between State and its Citizen.

If rights of Citizens fulfilled then it is a moral obligation of Citizens to do their duties towards State And hence both are inseparable in nature.



The balance between F.R and F.D ensures the vibrancy and resiliency of Parliamentary form of Democracy of India.

Evolution of Fundamental Duties-

1975

First time necessity of F.D was felt at time of Emergency.

1976

Indira Gandhi Government formed the Sarda Swarn Singh Committee regarding F.D.

↳ It gave 8 recommendations

1976

Parliament incorporated F.D through 42nd Constitutional Amendment Act 1976 on these recommendations.

It inserted separate Chapter - IV A and provide Article 51 A & added 10 F.Ds.

2002

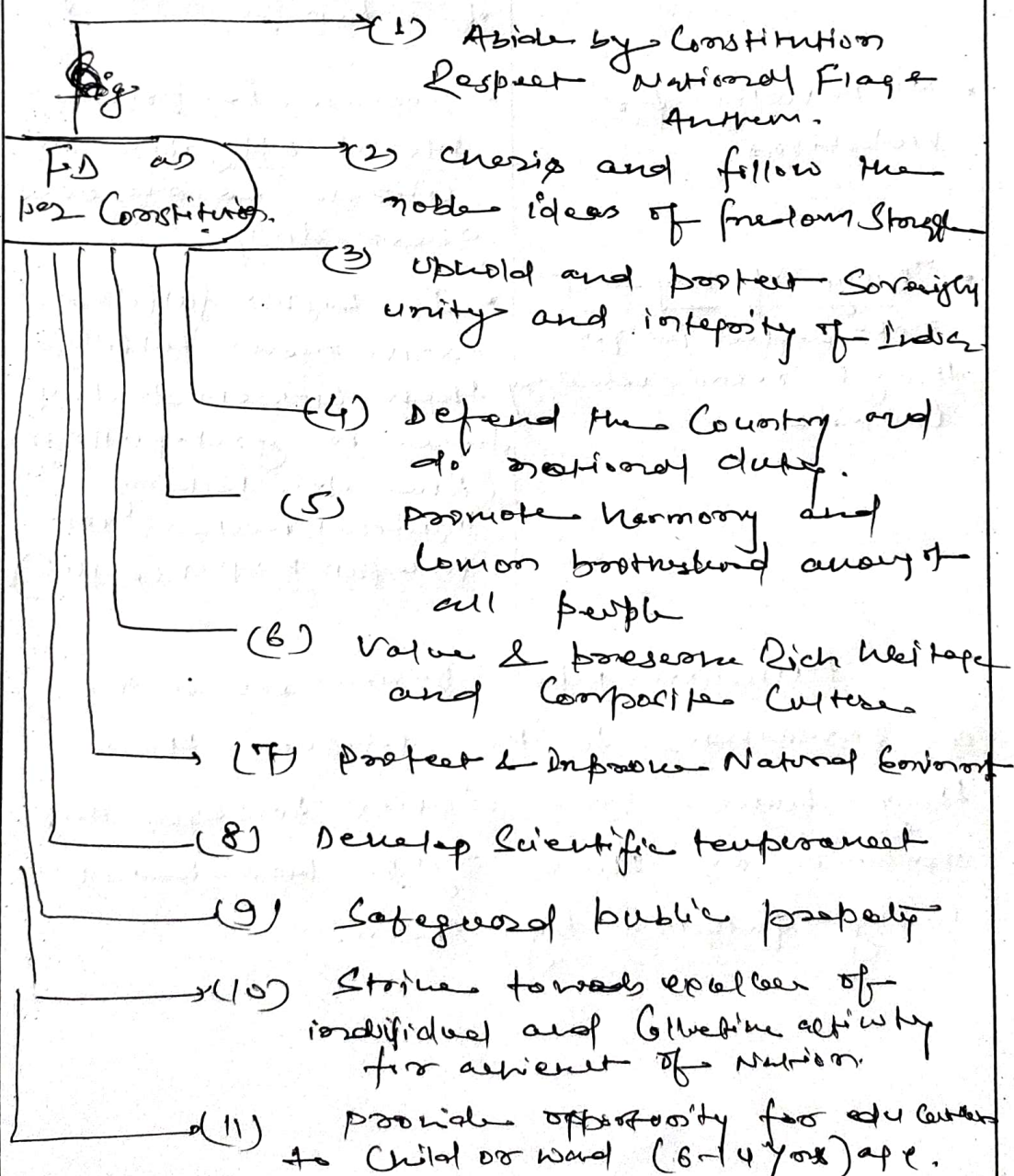
86th Constitutional Amendment Act 2002 is added 11th F.D as -
to provide opportunities for education to 6-14 age child or ward between 6-14 ages.

UPSC

Candidates must not write on this margin

(Specimen Answer Booklet - For Practice Purpose Only)

Original F.D were not incorporated in Constitution because they didn't feel the need of it. Although the F.Ds are inspired by socialistic ideas of USSR but the concept of duty towards nation or community was central to indigenous culture that is "DHARMO RAKSHATI RAKSHITAH".



UPSC

(Specimen Answer Booklet - For Practice Purpose Only)

Significance of Fundamental Duties

Criticism	Significance
- Borrowed from USSR - Non-Justiciable - No penalty for violations. "Duty of pay taxes" not added in FD though recommended by committee	- Inherited from Indian ancient culture and ethos. - But it helps the Courts in <u>examining the constitutional validity</u> of a law. - Because it provides <u>moral obligation</u> on citizens to exercise their duty. - If Rights fulfilled, basic needs fulfilled then citizens also pay taxes in <u>gratefulness</u> (And also lacking logistical means in forceful paying compliance).
Fundamental Duties serve as a reminder to the citizens that they have some duties towards their nation as their rights has been are being fulfilled by state. =	

Legal Enforceability of FD.

~~Also~~ Sardar Swaran Singh Committee recommended that FDs should be penalize on violation and not be questioned in the Court on this ground. But this provision has not been incorporated.

Although FDs are not justifiable but it can be enforceable by law. And parliament is free to force them by a suitable legislation for its failure in fulfillment.

In 50 years of incorporation FDs has served its purpose well in reinforcing its strong relationship between states and citizens for unity & integrity of nation and its social capital development.